

Defendant to provide notice of the 9/8/26, hearing, as well as serve a copy of the Motion on Plaintiff.

On 8/6/26, Plaintiff filed proof indicating that he served Plaintiff with a copy of the Motion. However, the Motion reflects the original date of 8/4/26. There is no indication that Defendant provided notice to Plaintiff of the 9/8/26, hearing.

Disposition

This is the second time Defendant has not properly notified the Plaintiff.

This Motion will be dropped.

7. 9:00 AM CASE NUMBER: L25-01159

CASE NAME: WELLS FARGO BANK, NA VS. RONALD REYES

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL PER CCP 664.6 & ENTER JUDGMENT
FILED BY PLN ON 6/3/26**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with the process documents. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$30,739.74, plus costs, less any credits for payments received.

The Defendant made payments of \$3,690.

Costs are \$460. An accounting of costs was provided in the Motion.

The Stipulated Agreement was filed 7/21/25.

The case was dismissed.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$27,049.74.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-05640
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. MICHELLE KING
*HEARING ON MOTION IN RE: MSJ
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Cesar Cervantes, and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail at an address provided on the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law.